CODE 1 — ON THE MANDATORY BASE CONTRIBUTION AND THE SYSTEM OF COMMON STOREHOUSES

Version: V1.12
Declared alignment: Constitution V.40; Code 2 V1.9; Code 3 V1.13; Code 4 V1.11; Code 5 V1.7; Code 6 V1.9; Code 7 V1.10; Code 8 V1.7; C.1-Annex A V1.7; Code 9 V3.4; Code 10 V1.8; Code 11 V1.6; Code 12 V1.7; Code 13 V1.9; Code 14 V1.10; Code 15 V1.13; Code 16 V1.11.

TITLE I — GENERAL PRINCIPLES

Art. 1 — Subject matter, definitions and scope of application

1. This Code governs:

   a) the mandatory base contribution, hereinafter “CBO”, and the determination of the related requirement;

   b) the allocation of the tasks necessary to the Community;

   c) the establishment and management of the Common Storehouses;

   d) the logistics, internal transport and common infrastructure connected with the performance of the CBO.

2. For the purposes of this Code, CBO means the contribution of necessary labour, fairly apportioned and organised according to actual needs, to guarantee the material self-sufficiency and the care of the Community.

3. For the purposes of this Code, the following definitions apply:

   a) **Management AI:** an information system supporting the collection and processing of data, the forecasting of the requirement and the formulation of proposals, with no deliberative power;

   b) **Circle 0:** the Care Nucleus referred to in Article 5.1, letter a), of the Constitution; where this Code assigns it a function, that function is performed by the persons who compose it, meeting in proximity assembly;

   c) **Competence Circle:** the functional network referred to in Article 6 of the Constitution which, in each Circle 1, operates through the relevant technical Council and is responsible for conducting preliminary examinations, validating or giving opinions within its own field, in accordance with the applicable Codes and Article 12-bis of Code 3;

   d) **task:** a specific activity included in the CBO plan, with an indication of its objective, duration, required competences, place and conditions of performance;

   e) **Common Storehouse:** a material infrastructure intended for the storage, management and distribution of commons in accordance with this Code.

4. The Management AI shall not replace the decision of the competent bodies, nor autonomously adopt decisions affecting the assignment of persons, access to essential goods or individual rights.

Art. 2 — Precedence of need over task

1. Essential tasks are not defined once and for all in the abstract. They are identified on the basis of the actual and documented needs of the Community.

2. The ordinary cycle for assessing the requirement takes place every quarter and comprises:

   a) the recording of the consumption, stock levels, expiry dates and shortages of the Common Storehouses;

   b) the collection of the needs reported by the Circles 0;

   c) the technical preparatory inquiry by the Competence Circles concerned;

d) the estimate of the resources, competences and hours needed.

3. The Management AI processes the available data and formulates a proposal for the hours requirement. The validation of needs and the approval of tasks fall exclusively to the Assembly of Circle 1, in accordance with the procedures of Code 3.

4. The proposal of the Management AI is advisory. The Assembly may approve it, amend it or reject it by a reasoned and traced decision.

5. The collection and processing of data shall take place in compliance with data minimisation, non-profiling and the data protection rules laid down in Codes 6 and 7.

6. The requirement includes the hours of the civic functions of List D referred to in Article 4 and those of mandatory training.

7. Together with the requirement proposal, the Labour Balance shall be published every quarter, indicating in aggregate form:

   a) the hours needed for each category: food, energy and water, care, maintenance, logistics, civic functions and documentation, other activities;

   b) the number of persons qualified per competence category;

   c) the hours available within the limit of Article 3;

   d) the gap between hours needed and hours available;

   e) the share of hours devoted to the functions of Article 12-bis, paragraph 13, of Code 3, which shall not exceed the limit laid down there; the hours of civic protection and the other hours of List D that do not fall within those functions are indicated separately.

8. If the hours needed exceed the hours available within the limit of Article 3, the Assembly shall proceed in the following order:

   a) it shall reduce deferrable activities in accordance with the hierarchy of Article 32, starting from the last priority;

   b) it shall simplify documentary formalities that do not affect safety, in accordance with the principle of proportionality of Code 2;

   c) it shall have recourse to the volunteering of Article 6, paragraph 6, to the mutualism between Circles of Article 30 and to the Pool provided for by Code 15;

   d) it shall request the activation of the Solidarity Protocol pursuant to Article 36.2 of the Constitution.

9. A gap that persists for two consecutive quarters shall be reported to Circle 2. The Labour Balances constitute the empirical basis for verifying the limit of Article 3 and for proposals for revision pursuant to Articles 37 and 38 of the Constitution; during the transition they are relevant for the purposes of the thresholds of Code 16.

Art. 3 — Legal nature and maximum limit of the CBO

1. The CBO constitutes a duty of material solidarity. It does not establish a relationship of subordinate employment and does not constitute, in itself, an obligation of a pecuniary nature.

2. The CBO shall not exceed an average of fifteen hours per week, calculated on a quarterly basis. The limit may not be derogated from by ordinary resolution.

3. Derogation from the limit referred to in paragraph 2 is permitted exclusively upon prior activation of the Solidarity Protocol pursuant to Article 36.2 of the Constitution and in compliance with the related conditions, guarantees and durations.

4. No provision of this Code may be interpreted as authorising the limit referred to in paragraph 2 to be exceeded outside the cases provided for in paragraph 3.

CHAPTER I — ALLOCATION OF THE MANDATORY CONTRIBUTION REQUIREMENT

Art. 4 — Classification of tasks

1. Essential tasks are divided into the following lists:

   a) **List A — Generic Hard Core:** a closed list of tasks indispensable to daily subsistence which do not require a specialist qualification, without prejudice to any safety training that may be prescribed. It includes, in accordance with the exhaustive list approved as an annex, the preparation of collective meals, ordinary hygiene and sanitary cleaning, the common laundry, the basic logistics of the Storehouses, basic agricultural harvesting, the non-medical care of minors and elderly persons, compost management and light maintenance;

   b) **List B — Specialist Hard Core:** a closed list of essential tasks that require competences validated through the Portfolio system. It includes basic health care, the maintenance of the Network and of local AIs, the technical management of energy and water installations, agrotechnics, the veterinary care of the sanctuaries, the accounting of the Storehouses and the operation of complex vehicles;

   c) **List C — Dynamic essential tasks:** an open list of variable, seasonal or emergency activities, identified on a quarterly basis by the Assembly on a proposal from the Competence Circles. It may include, by way of example, intensive harvesting, reforestation, bioremediation and light construction;

   d) **List D — Civic functions:** functions of coordination, facilitation, guarantee, civic protection and technical council conferred by sortition, as well as the documentation that the Codes make mandatory. The hours are counted in the CBO of the person performing them, pursuant to Article 7.2 of the Constitution, and do not give entitlement to CdR.

2. The list of List A and that of List B are exhaustive. Their amendment requires the updating of the annex and the approval of the competent body in accordance with Code 3.

3. The inclusion of a task in List C indicates that it responds to a temporary or variable requirement. It shall not be used to circumvent the competence, safety or training requirements laid down for the tasks of Lists A and B.

4. Every task included in a list shall be accompanied by the information necessary to assess its duration, competences, risk, training and conditions of performance.

Art. 5 — Generic CBO and specialist CBO

1. The CBO is generic or specialist according to the competences validated and necessary for the task assigned.

2. The primary CBO of a member with validated specialist competences consists in the performance of the List B tasks relevant to the recognised competences, where there is a requirement for such tasks.

3. A person who has only generic competences shall not perform List B tasks autonomously. That person may take part in them within a learning pathway accompanied by a specialist tutor, formalised in the Portfolio and carried out in compliance with the safety conditions.

4. If in a given shift there is no requirement for the validated specialist competence, the member may be assigned to generic List A tasks, in accordance with the allocation rules and without discrimination. Possession of a specialist competence does not entail an automatic exemption from the generic CBO.

5. Assignment to tasks other than the primary competence shall respect health limits, declared preferences, available training and the criteria of fair distribution.

Art. 6 — Quantitative determination and apportionment of hours

1. The actual CBO requirement is determined every quarter. No permanent individual total of hours is fixed.
2. If the individual requirement resulting from the calculation is lower than the maximum limit referred to in Article 3, the lower requirement applies. There is no mandatory minimum of hours.
3. The apportionment is carried out separately for each competence category:

   a) the generic total of hours, including the List A tasks and the generic share of the List C tasks, is divided by the number of persons qualified for the generic CBO;

   b) the specialist total of hours is calculated separately for each competence. The List B total of hours and the specialist share of List C are divided by the number of persons qualified for the specific competence;

   c) the hours of restorative work provided for by Article 8 are not counted in the ordinary CBO.
4. The calculation shall indicate the overall hours, the apportionment criteria, the number of persons considered and any corrections applied. The data shall be published in aggregate form and in compliance with Codes 6 and 7.
5. To manage temporary peaks, a quarterly hours bank is permitted. For a maximum of two consecutive weeks, the commitment may reach twenty-five hours per week, provided that:

   a) the average for the quarter does not exceed fifteen hours per week;

   b) the excess hours are compensated by an equivalent period of rest;

   c) the health and safety limits are respected;

   d) the peak and the recovery plan are recorded.
6. Alternatively, the extraordinary requirement may be covered through volunteering incentivised under the CdR system governed by Chapter V. This arrangement shall not be imposed.

Art. 7 — Preferences and allocation

1. Each member may indicate, for each quarterly cycle, up to three preferences among the tasks for which the member possesses the required competences or may follow an authorised mentored pathway.
2. The Storehouse Council carries out the actual allocation on the basis of the criteria approved by the Assembly and with the advisory support of the Management AI.
3. The allocation shall take into account, in the order established by the approved criteria:

   a) validated competence and safety requirements;

   b) the requirement of the task;

   c) the preferences expressed;

   d) fair distribution of the load;

   e) continuity of the service;

   f) relevant personal conditions and health limits, without acquiring unnecessary health data.
4. The assignment decision shall be capable of being reasoned and shall be traceable. The Management AI shall not autonomously assign a person nor make its own proposal binding.
5. The arrangements for challenging the allocation are governed by Article 12.

Art. 8 — Unpleasant, arduous and night tasks and restorative work

1. Tasks that involve particular physical burden, hygienic discomfort, risk or performance in the time band between 22:00 and 06:00 are classified as unpleasant, arduous or night tasks. The list shall be drawn up by the Health Council and the Storehouse Council and submitted to the Assembly for approval.

2. Work performed in the night band is classified as unpleasant for the purposes of the allocation and the recognition provided for by this Code.

3. Without prejudice to Article 6-bis, paragraph 6, of Code 7, unpleasant, arduous or night tasks shall be assigned in the following order:

   a) in the first place, they may be included in a restorative agreement freely agreed pursuant to Code 4, in compliance with the guarantees referred to in paragraph 4;

   b) for the remaining share, they shall be assigned by public and traceable sortition among the qualified and available persons, applying a rebalancing criterion that temporarily excludes from the sortition those who performed the greatest number of unpleasant hours in the preceding quarter, except where no qualified persons are available.

4. Every restorative agreement that provides for unpleasant or arduous activities shall respect the following, failing which the relevant clause shall be null and void:

   a) a maximum duration and a measure proportionate to the facts;

   b) the free and informed consent of the person concerned;

   c) the prohibition on assigning degrading tasks or dangerous tasks that are not ordinary;

   d) the right to PPE, to training and to the applicable health surveillance;

   e) independent supervision by the Guarantee Circle;

   f) the right to lodge a complaint and to request that the task be replaced.

5. Unpleasant activities shall not exceed fifty per cent of the overall total of hours of restorative work agreed.

6. Refusal to accept a restorative task shall not be interpreted as an admission of responsibility. The procedural consequences provided for by Code 4 apply, without automatic sanctions.

Art. 9 — Rotation, breaks and work blocks

1. For the purposes of this Article, **work block** means a continuous period of performance without a break longer than fifteen minutes.

2. Between two blocks there shall be a minimum break equal to thirty per cent of the duration of the preceding block, without prejudice to any more protective limits established by health and safety rules.

3. The duration of continuous assignment and of the blocks shall be commensurate with the degree of strain of the task:

   a) for tasks of high strain or unpleasantness, continuous assignment shall not exceed two weeks; the block shall not exceed one hour and thirty minutes and no more than two blocks per day are permitted;

   b) for tasks of medium strain, continuous assignment shall not exceed one quarter; the block shall not exceed three hours and no more than two blocks per day are permitted;

   c) for tasks of low strain, continuous assignment shall not exceed two quarters; the block shall not exceed four hours and no more than three blocks per day are permitted.

4. The actual duration of the block shall be agreed between the member and the Storehouse Council according to the needs of the service, the availability of personnel and health limits.

5. The accumulation of several blocks in the same day is permitted only if agreed, compatible with health and accompanied by the necessary recovery periods. The more favourable provisions on health and safety prevail over the ordinary limits of this Article.

Art. 10 — Recognition of unpleasant tasks through supplemented CdR

1. Tasks classified pursuant to Article 8, paragraph 1, give rise to a supplement in CdR.

2. The supplement is calculated on the ordinary unit defined by Article 43, equal to one CdR per hour. The

public table approved by the Assembly establishes a supplement of between thirty and one hundred per cent of the ordinary value.

3. Where the task is performed within the CBO, only the supplement is awarded: from 0.3 to 1 CdR per hour. Where it is performed beyond the CBO, the supplement is added to the ordinary CdR: from 1.3 to 2 CdR per hour.

4. Restorative work gives rise to ordinary CdR, unless the restorative agreement freely and expressly provides for a different recognition permitted by Chapter V.

5. This Article identifies the cases that generate supplemented CdR. The award, the cap, the decay and the use of CdR are governed exclusively by Chapter V.

Art. 11 — Exemptions, reductions, suspensions and solidarity

1. The following measures apply:

   a) **total exemption:** for persons over seventy-five years of age, for persons with certified severe disability and for women who have given birth, until the end of the twelfth month from the birth;

   b) **reduction of fifty per cent:** for parents of children under three years of age, for certified continuous caregivers and for persons over seventy years of age who do not fall within the total exemption referred to in letter a);

   c) **temporary suspension:** in the event of illness, accident or illness of a minor child, where the condition makes the performance of the CBO temporarily impossible or unsafe. The condition shall be attested by the Health Council within the limits of the necessary information;

   d) **solidarity substitution:** temporary coverage by the Community of the hours not performed, in accordance with paragraph 2;

   e) **modulated reduction:** temporary reduction of the CBO, to the extent and for the duration indicated by the Health Council or the Care Council, for pregnancy, bereavement, crisis or another condition provided for by Codes 6 and 12, including the reduction of Article 8, paragraph 2, letter d), of Code 6. The hours not performed are covered in accordance with paragraph 2; paragraphs 3 and 4 apply.

2. In the event of temporary suspension, the Community Solidarity Hours Bank operates. The hours not performed are covered by the Community and do not generate individual debt. On return, a voluntary and agreed repayment is permitted, compatible with health and with the maximum limit referred to in Article 3. Any sanctioning mechanism for the hours covered by the Solidarity Hours Bank is prohibited.

3. Total exemption prevails over the reductions provided for in paragraph 1, letter b). No person shall be subject simultaneously to more than one reduction for the same hour.

4. The information used to recognise exemptions, reductions or suspensions shall be treated confidentially. Only the operational outcome necessary for allocation shall be communicated to the Storehouse Council, not the diagnosis or the health details.

5. The application of the measures of this Article shall not prejudice access to the Basket or to the Common Storehouses.

Art. 12 — Transparency, oversight and appeal

1. The following shall be published on the Network, in accessible form and in compliance with data protection:

   a) the aggregate total of hours;

   b) the criteria for apportionment and separation;

   c) the aggregate number of assignments per category;

   d) the arrangements for and outcomes of the sortitions;

   e) the criteria used by the Management AI and its relevant proposals.

2. Oversight of the correctness of the requirement and of any inflation of hours is exercised by the Circles 0 and through cross-audit by the Competence Circles. Oversight does not entail access to unnecessary personal data.

3. Any member may request clarification or lodge a reasoned appeal against his or her own allocation with the Guarantee Circle within seven days of its communication.

4. The appeal has suspensive effect solely as regards the assignment of unpleasant or arduous tasks, until the decision, unless the suspension would compromise an essential service or give rise to a serious risk. In that case the Guarantee Circle may order an alternative temporary measure.

5. The decision on the appeal shall be reasoned and communicated to the person concerned. The further guarantees provided for by Code 4 remain unaffected.

CHAPTER II — SYSTEM OF COMMON STOREHOUSES

Art. 13 — Definition, function and independence of the system

1. The Common Storehouses are material infrastructures that guarantee access to the goods necessary for subsistence irrespective of the CBO performed and of the CdR accrued, in accordance with the Constitution and this Code.

2. The Storehouses perform the following functions:

   a) distribution of the commons according to need and availability;

   b) recording of material requirements, as an informational element for the determination of the CBO pursuant to Article 2;

   c) storage of the commons and prevention of private accumulation and of waste.

3. Access to the necessary goods included in the Basket shall not be made conditional on the performance of the CBO or on the possession of CdR. Paragraph 1, this paragraph, Article 18, paragraph 1, letter a), and the provisions of the Annexes and of the other Codes that exclude making the Basket subject to the CBO concern members and persons received in accordance with the Codes, including a minor who remains in his or her own Circle 0 pursuant to Article 26.5 of the Constitution. A person who has ceased to be a member pursuant to Article 7.3-bis of the Constitution and Article 29, paragraph 6-bis, of Code 4 is entitled only to drinking water and life-saving emergency care as provided for by Articles 1.3 and 4.9 of the Constitution and to the energy essential to health and survival of Article 15.2 of the Constitution and Article 4, paragraph 2, of Code 8. The rights of their minor children remain intact.

Art. 14 — Types and territorial organisation

1. In the phase of first application, the system of Storehouses comprises the following types:

   a) Food Storehouse;

   b) Tools Storehouse;

   c) Textile and Housing Storehouse;

   d) Health Storehouse, governed by Code 6;

   e) Digital Storehouse.

2. The taxonomy is not exhaustive. Specialised, energy, building, critical spare parts, high-security or emergency Storehouses may be established, in accordance with a regulation proposed by the Storehouse Council and approved by the Assembly.

3. Each Circle 0 has a Proximity Pantry intended for high-turnover goods. Circle 1 has a Central Storehouse for storage and redistribution.

4. The territorial organisation of the Storehouses shall guarantee traceability, accessibility and continuity, without creating conditions of unjustified exclusion.

Art. 15 — Common ownership and destination of surplus or obsolete goods

1. The goods belonging to the Storehouses are commons, undivided, inalienable and exempt from seizure, in accordance with the Constitution.

1-bis. When the Balance provided for by Code 15 is active, surplus goods that constitute a Federable Balance within the meaning of Article 2 of Code 15 are entered in the Pool and allocated in accordance with Code 15; the Circle does not choose their recipient. Paragraph 2 applies to non-federable surplus goods, to obsolete goods, to goods at risk of waste not reassigned within the time limit of Article 6 of Code 15 and to goods that the body competent for the Pool declares not necessary to the Pool. For the associated Community of Article 21-bis of Code 15, paragraph 2, letter b), of that Article applies.

2. Surplus goods or goods that have become obsolete shall be managed in the following order of priority:

   a) **external donation:** goods still fit for consumption or use shall as a priority be destined for federated or neighbouring communities, where donation is possible and prevents waste;

   b) **internal reuse and recovery:** goods are repaired, reused or dismantled to recover components; suitable organic residues may be destined for composting;

   c) **exchange or transfer to the outside:** surplus perishable goods that cannot be donated, or obsolete goods that are still usable, may be exchanged or transferred in order to acquire goods that cannot be self-produced;

   d) **making safe:** goods that are dangerous or can be neither repaired nor recovered shall be kept in secure storage and sent for treatment in accordance with Article 14 of the Constitution, without recourse to landfill or incineration. For non-cyclable materials, the substitution plan provided for by Article 14.1 of the Constitution shall be drawn up.

3. The economic terms of the operations referred to in letters a) and c) are assessed in UCR in accordance with Code 3 and governed, as regards external relations, by Code 15. None of these operations may be settled by means of CdR.

4. The reuse, recovery and making safe referred to in letters b) and d) follow the regulations of the Circles competent for quality, health, production and environmental protection.

5. Every destination shall be recorded, with reasons and quantity, in the traceability system of the Storehouses.

Art. 16 — Supply of the Storehouses

1. The Storehouses are supplied by means of:

   a) goods produced within the CBO;

   b) voluntary conferrals of goods from family craft workshops and vegetable gardens;

   c) external donations approved in accordance with the applicable procedures;

   d) residual purchases of necessary goods that cannot be self-produced.

2. Strategic goods that cannot be self-produced but are necessary shall be identified in a dedicated category, with differentiated safety stocks. The criteria are defined by regulation of the Storehouse Council with the opinion of the Health Council, for the aspects within its competence.

3. Every conferral of goods shall be recorded at least by origin, quantity, quality and date of acquisition. The data are accessible in accordance with the transparency levels provided for by Codes 3 and 7.

4. Refusal of a conferral of goods shall not be arbitrary and shall be reasoned on the basis of quality, safety, storage capacity or other criteria established by the applicable STVs.

Art. 17 — Management, traceability and role of the Management AI

1. The operational management of the Storehouses is entrusted to the Storehouse Council, in compliance with the decisions of the Assembly and with the competences assigned to the other Circles.

2. The Management AI may record data, calculate estimates, formulate proposals and generate alerts. It has no deliberative powers and no powers of autonomous assignment.
3. The system shall promptly record inflows, outflows, stock levels, expiry dates and requirements and may propose reorder thresholds.
4. Every proposal for purchase, disposal or rationing shall be subject to human validation. Where the proposal exceeds the thresholds approved by the Assembly, a resolution of the Assembly is required.
5. The thresholds referred to in paragraph 4 are approved and may be amended exclusively by the Assembly, on a reasoned proposal from the Storehouse Council.
6. Every human decision that departs substantially from the AI's proposal shall be recorded with a brief statement of reasons, without this limiting the decision-making power of the competent body.

Art. 18 — Access and distribution

1. The distribution of goods is regulated according to the following categories:

   a) **necessary goods included in the Sufficiency Basket:** open access, free of charge and unconditional, according to actual need. Access shall not be made subject to the CBO or to CdR, except as provided for by Article 13, paragraph 3, for those who have ceased to be members pursuant to Article 7.3-bis of the Constitution;

   b) **non-necessary goods available in limited quantity:** access by booking or transparent waiting list; any use of CdR is governed by Article 45;

   c) **necessary goods that are temporarily scarce:** distribution in accordance with the rules referred to in Article 19.
2. The content of the Basket is defined in the annual Technical Annex, approved by the Assembly on a joint proposal from the Health Council and the Storehouse Council. The proposal brings together the lists prepared by the sectoral Councils in accordance with the Codes, including the Health Basket of Article 6, paragraph 1, of Code 6 and the Material Basket of Article 4 of C.1-Annex A; the lists take effect only upon approval by the Assembly. The proposal shall be published and may be contested in accordance with the applicable procedures.
3. This Code governs the arrangements for access and distribution. The determination of individual health needs falls to the Health Council, within the limits of Codes 6 and 12.

Art. 19 — Conservative thresholds and fair rationing

1. The Storehouse Council may propose conservative thresholds for the drawing of goods per nucleus, based on stock levels, expiry dates and the characteristics of the good. The thresholds serve the purpose of preventing waste and hoarding and shall not turn into punitive conditions of access.
2. The repeated exceeding of a threshold does not automatically entail sanctions or suspensions. In the first instance a clarification conversation shall be proposed in Circle 0, with respect for confidentiality.
3. In the event of established scarcity, rationing shall be temporary, reasoned and proportionate. It is proposed by the Competence Circle and approved by the Assembly in accordance with Code 3. The decision shall be communicated to the Community without delay.
4. Rationing is based on material equity and not on arithmetical equality. It takes into account the actual requirement, the number and conditions of the members of the nucleus, age and relevant health conditions.
5. For health goods or sensitive goods, the determination of individual need falls to the Health Council. Health information shall not be made public.
6. Conservative thresholds shall not reduce or suspend minimum access to the essential goods of the Basket. Any measure that temporarily limits such access shall be adopted in accordance with the scarcity procedure and the guarantees provided for by the Constitution and the Codes.

Art. 20 — Transparency and oversight by the Community

1. Data on stock levels, flows, expiry dates, waste and the composition of the Basket shall be published on the Network, in good time and in accordance with the applicable access levels.
2. Anyone may report anomalies to their own Circle 0 or to the Storehouse Council. The report shall be recorded and shall receive a response in accordance with a public procedure.
3. A quarterly cross-audit shall be carried out with the participation of:
   a) the Circle 0 concerned;
   b) the Storehouse Council;
   c) three members drawn by lot with a temporary audit function.
4. The arrangements for the draw, the duration of the office, the confidentiality obligations and the incompatibilities are governed by a regulation approved by the Assembly on a proposal from the Guarantee Circle.
5. The audit does not entail indiscriminate access to personal data, health data or data relating to the security of infrastructure.
6. For every good and service distributed by the Storehouses, there shall be published the reproduction cost in UCR, certified pursuant to Article 9 of Code 3, and a scarcity indicator expressing the ratio between availability and requests and the waiting times. The indicators inform people’s choices and the resolutions of the Assembly. They are not prices, do not give rise to exchanges and do not condition access to the Basket.

Art. 21 — Quality control

1. The quality control protocols for goods are proposed by the competent Circles and validated in accordance with Code 2.
2. Before distribution the following shall be verified:
   a) for perishable goods, the expiry date, integrity and storage conditions;
   b) for tools and equipment, conformity with the applicable STVs, state of safety and functionality.
3. Non-conforming goods shall not be distributed. Depending on the case, they are destined for composting, repair, recovery or making safe.
4. The decision of non-conformity shall be recorded and reasoned. The technical assessment is carried out by the competent Circle, without prejudice to the powers of the Quality Council provided for by Code 2.

Art. 22 — Subsidiarity of the Storehouses

1. The Proximity Pantry autonomously manages high-turnover goods within the thresholds approved by the Assembly. When the stock level falls below the threshold or the requirement exceeds local capacity, a request shall be submitted to the Central Storehouse.
2. The ordinary management of the Proximity Pantry may be performed within the generic CBO of List A.
3. The principle of subsidiarity does not exempt from compliance with the common procedures on traceability, quality, safety and data protection.

CHAPTER III — LOGISTICS, INTERNAL TRANSPORT AND SAFETY

Art. 23 — Subject matter and subordination of efficiency

1. This Chapter governs the logistical organisation necessary for the performance of the CBO and for the functioning of the Storehouses referred to in Chapter II.

2. Logistics pursues the reduction of unnecessary journeys, of energy waste and of unproductive time. It is organised in the service of needs and shall not artificially create new requirements.

3. Material efficiency shall not prevail over the limits of health, safety and dignity provided for by Article 27 and by Codes 6 and 14. In the event of conflict, the measures necessary to protect health, safety and dignity prevail.

Art. 24 — Storehouse Council and division of competences

1. The Storehouse Council is the technical Council provided for by Article 10.5 of the Constitution. It is composed of three to five persons drawn by lot in accordance with Article 12-bis of Code 3 and:

    a) draws up proposals for general criteria for allocation and the quarterly logistics plan;

    b) manages the Pantries and the Central Storehouse;

    c) manages the fleet of common vehicles and organises its maintenance, until the activation of the Logistics Council provided for by Code 11;

    d) proposes reorder thresholds and rationing measures;

    e) implements the decisions of the Assembly relating to logistics.

2. The Assembly of Circle 1 approves the general criteria and the quarterly logistics plan.

3. The Storehouse Council carries out the individual allocation of the CBO in accordance with the approved criteria, with the advisory support of the Management AI.

4. The Guarantee Circle examines appeals and carries out the procedural checks within its competence. It does not replace the Storehouse Council in ordinary technical decisions.

5. From the activation of the Logistics Council, the management of the fleet, of deliveries and of basic mobility falls to the latter in accordance with Code 11. The Storehouse Council retains the management of the Storehouses, the assessment of the requirement and the allocation of the CBO.

Art. 25 — Internal transport and proximity

1. The internal transport necessary for the CBO and for the functioning of the Storehouses shall be organised, as far as possible, by means of common vehicles, such as cargo bikes, light electric vehicles, common tractors and trolleys.

2. A member shall not be required to use his or her own private vehicle to perform the CBO. Where a vehicle is necessary, the common vehicle is provided by the Tools Storehouse or by the competent service.

3. The Management AI may formulate proposals for optimising routes on the basis of the proximity between the place of residence and the place of the task. The allocation remains a decision of the Storehouse Council.

4. As a rule, allocation takes place within thirty minutes' travel from the Circle 0 to which the member belongs. The limit is binding as a planning criterion, subject to the exceptions in paragraph 5.

5. Derogation is permitted exclusively where it is necessary for:

    a) access to a unique infrastructure;

    b) the use of a specialist competence not available in Circle 0;

    c) a vital emergency;

    d) a specialist training activity.

The derogation shall be reasoned and recorded. Where it entails a travel assignment, the travel time is counted as hours of CBO and gives no entitlement to CdR; for travel assignments carried out beyond the CBO, Article 43, paragraph 2, applies.

6. The calculation of travel times is carried out in accordance with standardised criteria defined in the

Mobility Technical Annex, approved by the Assembly.

Art. 26 — Tools and implements

1. The tools and implements necessary for the performance of the CBO shall be provided by the Tools Storehouse, kept in working order and, where necessary, sanitised.
2. A member shall not be required to purchase or provide personal tools in order to fulfil the CBO, unless their use is freely agreed and does not entail uncompensated costs or risks.
3. Ordinary maintenance may be performed within the generic CBO; specialist maintenance is assigned to persons with validated competence.
4. Breakage due to normal wear and tear does not entail personal charges. The distinction between normal wear and tear, negligence and wilful misconduct is established in accordance with the procedures of Code 4, with the technical support of the competent Circle.

Art. 27 — Safety, hygiene and Safety Sheet per task

1. Every task of Lists A, B and C shall be accompanied by a Safety Sheet in force, as provided for by Codes 6 and 14.
2. The Sheet shall set out at least the relevant risks, the prevention and protection measures, the PPE and the collective protections needed, postures and load limits, exposures, the training required and the conditions for suspension.
3. The Health Council validates the health aspects within its competence. The Safety Council validates the general safety aspects in accordance with Code 14. The Storehouse Council validates the organisational and logistical aspects. The approvals are limited to the respective fields and may be collected in an integrated Sheet.
4. No CBO shall be performed without the PPE and the collective protections provided for by the Sheet and without the minimum training required by Article 28.
5. In the event of serious and immediate risk, the rules on interruption and suspension provided for by Code 14 apply.

Art. 28 — Mandatory minimum training

1. Before performing generic CBO, the member shall complete basic training in safety, hygiene, the use of implements and the logistics of the Storehouses.
2. The duration and content of basic training are defined in the Training Technical Annex, approved by the Health Council and the Storehouse Council. The duration of four hours indicated for the first application is provisional and remains valid only until it is revised.
3. Before performing specialist CBO or using complex vehicles, the member shall complete specific modular training, validated by the relevant Competence Circle.
4. Mandatory training is counted as CBO. Life-saving training is accessible without a paywall in accordance with Codes 5, 6 and 14.

Art. 29 — Accident and occupational disease

1. In the event of an accident during the CBO or of an occupational disease connected with the CBO, the temporary suspension and the Solidarity Hours Bank provided for by Article 11 apply, as well as the provisions of Code 6.
2. The Health Council and the Storehouse Council shall draw up a report on the causes and on the corrective measures. The analysis gives priority to prevention and to organisational or systemic causes

and does not automatically presume individual responsibility.

3. Any wilful misconduct or gross negligence is established in accordance with the procedures of Code 4. This Article does not confer on Code 6 sanctioning powers not provided for by that Code.

4. The injured member shall not be reassigned to the same task that caused the accident without his or her request and without the Safety Sheet having been reviewed and, where necessary, amended.

5. Individual health data are processed in accordance with Code 6. Public reports on events are aggregated and anonymised in accordance with Codes 7 and 14.

Art. 30 — Logistical peaks and inter-Circle emergencies

1. In the event of a seasonal peak or an emergency, additional capacity is, as a rule, obtained in the following order:

   a) local volunteers, with any recognition in CdR provided for by Chapter V;

   b) volunteers from other Circles, with any recognition in CdR;

   c) temporary redistribution of the generic CBO according to objective criteria and in compliance with the maximum limit;

   d) request for the activation of the Solidarity Protocol pursuant to Article 36.2 of the Constitution, where ordinary capacity is insufficient.

2. The order referred to in paragraph 1 is the ordinary one but may be derogated from. One or more levels may be skipped where they prove manifestly inadequate in view of the nature, the urgency or the specialisation required. The derogation shall be reasoned and recorded.

3. The CBO may be performed temporarily for the benefit of another Circle only for the necessary duration and in compliance with competences, health limits and coordination procedures.

4. Article 32 establishes which activities have priority when capacity is insufficient. This Article governs the ordinary arrangements for obtaining additional capacity.

Art. 31 — Transparency and data protection

1. The transport plan, the assignment of common vehicles, the state of the equipment and the Safety Sheets shall be published on the Network, in accordance with the applicable access levels.

2. Reports on accidents and occupational diseases shall be published exclusively in aggregate and anonymised form.

3. Individual health data are protected in accordance with Code 6. Logs and technical data are processed in accordance with Code 7. Information relating to general safety is managed in accordance with Code 14.

4. Publication shall not include information allowing the direct or indirect identification of a person, except in the cases and under the procedures expressly provided for by the Codes.

Art. 32 — Hierarchy of logistical priorities

1. When vehicles, energy, personnel or time are not sufficient to carry out all activities at the same time, the Community shall apply the following hierarchy of priorities:

   a) vital emergencies and urgent health interventions;

   b) procurement and distribution of the goods included in the Sufficiency Basket;

   c) management of perishable goods at risk of waste;

   d) non-urgent health services and care of frail persons;

   e) maintenance of the critical infrastructure for energy, water and the Network;

   f) other logistical activities and deferrable activities.

1-bis. The goods of the Basket that the Code or the Annex providing for them indicates as deferrable come

after letter e) of paragraph 1.

1-ter. By way of derogation from the order of paragraph 1, the care of frail persons provided for by letter d) precedes the management of the perishable goods of letter c). Basket food, including perishable food, remains in letter b) and, where its unavailability constitutes a vital emergency within the meaning of Article 4, paragraph 3, of Code 9, in letter a).

1-quater. The priority scales of the sectoral Codes, numbered in levels, order the activities and uses internal to the sector and apply in compliance with paragraph 1 and with paragraphs 1-bis and 1-ter. In capacity conflicts between different sectors, and in every case of conflict, paragraph 1 and paragraphs 1-bis and 1-ter prevail. In every scale level 1 is the highest: the levels with a lower number are higher, and reductions proceed from the last level towards the first. Where a Code indicates a level without further specification, it means the level of the scale of the sectoral Code competent for the good or for the function. Paragraph 1 is referred to by letters.

1-quinquies. In the Codes the expressions “levels 1 and 2 of the Basket”, “Basket of level 1–2” and “Basket 1-2” mean:

a) for energy, the uses of levels 1 and 2 of Article 2, paragraph 3, of Code 8;

b) for food, the destinations of levels 1 and 2 of Article 2, paragraph 5, of Code 9;

c) for care, the services of the Care Basket of levels 1 and 2 provided for by Article 4, paragraph 1, of Code 12;

d) for the other goods and services of the Basket, including water, health, the Material Basket and logistics, the goods and services of letters a) and b) of paragraph 1, excluding those that are deferrable within the meaning of paragraph 1-bis.

The same expressions do not refer to the Circles.

1-sexies. The minimum feeding necessary for survival and the urgent veterinary care of the animals that live with the Community, including those received in sanctuaries, fall within letter a) of paragraph 1, without compromising levels 1 and 2 of the human Basket, like the minimum water provided for by Article 10, paragraph 8, of Code 9.

2. The hierarchy constitutes a prevailing criterion for resolving conflicts of capacity, but it does not operate as an automatism devoid of any assessment of the concrete circumstances.

3. A reasoned derogation is permitted where it is necessary to prevent a greater, immediate and documented harm, such as a water failure that compromises the Storehouses, an energy outage, a risk of collapse or an interruption of the cold chain. In that case:

   a) the Storehouse Council decides, as the competent operational body;

   b) the opinion of the Health Council or of the Guarantee Circle shall be obtained in advance, where this does not entail a prejudicial delay; otherwise it shall be obtained without delay after the intervention;

   c) the derogation shall be promptly recorded on the Network with the reasons, the harm prevented and the expected duration;

   d) the measure shall last only for the time necessary to prevent the harm;

   e) the derogation shall be communicated to the first available Assembly for verification and, where necessary, ratification.

4. The priorities of paragraph 1, letters a) and b), and the precedence of care provided for by paragraph 1-ter may be derogated from only in the cases and in accordance with the procedure of paragraph 3. For the subsequent letters, reasoned derogations are permitted on the basis of a technical assessment by the Storehouse Council.

CHAPTER IV — COMMON INFRASTRUCTURE, ENERGY AND NETWORK

Art. 33 — Subject matter and principles

1. This Chapter governs the infrastructural goods necessary for the performance of the CBO and for the functioning of the Storehouses and of Logistics, including energy, water, the information Network, common spaces and maintenance.
2. Infrastructures are commons that cannot be appropriated and are managed in accordance with the principles of sufficiency, resilience, repairability and collective sovereignty.
3. The management of infrastructures is coordinated with the sectoral Codes, in particular with Codes 7, 8, 10, 11 and 14.

Art. 34 — Energy as a fundamental common good

1. Energy is a prerequisite for the continuity of the Basket and of essential services. The Community pursues energy autonomy through distributed renewable sources, common storage and efficiency of consumption.
2. The technical management of installations and energy planning are carried out by the competent Energy and Water Council in accordance with Code 8. Coordination with logistics and with common infrastructure is ensured by the Storehouse Council.
3. No Circle 0 shall be excluded from the minimum supply necessary for vital needs, except in the case of temporary material impossibility managed in accordance with the applicable Codes.
4. Consumption may be recorded and optimised with the support of the Management AI, in compliance with Article 38 and Code 7.

Art. 35 — Preventive maintenance and repairability

1. Every common infrastructure has a Maintenance Sheet indicating the life cycle, the periodic checks, the maintenance activities and the competences needed.
2. Preventive maintenance shall be scheduled with priority over corrective maintenance, except in emergencies or for reasoned technical needs.
3. It is prohibited to purchase goods subject to planned obsolescence where a suitable and repairable alternative exists.
4. Goods purchased shall be repairable, as far as technically possible, with common tools, accessible documentation and spare parts available in the Storehouses or obtainable without dependencies incompatible with Code 15.
5. Conformity assessments and technical specifications are governed by Code 2 and by the sectoral Codes.

Art. 36 — Common spaces and workshops

1. Common spaces, workshops, craft workshops and common kitchens are infrastructures serving the Community and the CBO.
2. Shared use is the general rule. Access is organised in a manner that is transparent and compatible with safety, maintenance and continuity of services.
3. Prolonged exclusive use of a common space beyond the threshold established by the regulation is subject to authorisation by the competent body, in accordance with transparent criteria approved by the Assembly.

4. Any use of CdR connected with exclusive use is governed by Article 45.
5. Workshops and craft workshops shall be used in compliance with the Safety Sheets, the STVs and the applicable training requirements.

Art. 37 — Information Network and digital sovereignty

1. The information Network is the common infrastructure connecting Circles, Storehouses, Logistics and the systems for recording requirements. It is run on community infrastructure, with free software and open standards, pursuant to Article 19.4 of the Constitution and Article 9-bis of Code 16.
2. Recourse to external proprietary private platforms for essential data or functions is prohibited, except for a temporary transition that is reasoned and recorded in accordance with Code 15.
3. The data generated by the activities of the CBO and of the Storehouses are managed as common resources, with respect for the rights of the persons to whom the data relate and for the rules of Codes 6 and 7.
4. Opening the source code does not eliminate the risk of concentration of control. The governance of modifications, distribution and access is governed by Article 38 and by Code 7.

Art. 38 — Management AI: role, limits and governance

1. The Management AI is a support tool. It may process data, formulate proposals, optimise resources, generate forecasts and flag anomalies. It does not constitute a decision-making body.
2. The Management AI is prohibited from:

   a) deciding the individual allocation of the CBO;

   b) denying or conditioning access to the Basket;

   c) processing non-anonymised individual health data, except in the cases and in the manner strictly authorised by Codes 6 and 7;

   d) adopting decisions without human validation where they affect persons, essential resources or rights;

   e) producing individual profiles, reputational rankings or behavioural predictions.
3. Every relevant proposal of the AI shall be traced, explainable within the available technical limits and contestable. The competent human body may amend or reject it.
4. Technical governance is regulated as follows:

   a) the source code is open, versioned and accompanied by documentation of the modifications;

   b) modifications to the code in production are made by the Network Council in accordance with Code 7 and are subject to independent audit by the Guarantee Circle as regards the procedural aspects;

   c) updates are distributed in accordance with a procedure approved by the Assembly, which provides for prior verification and the possibility of restoring the previous version;

   d) servers, access keys and datasets are administered by the competent parties in accordance with Code 7; accesses are recorded and verifiable;

   e) the Assembly may order the suspension, replacement or deactivation of the system. The Guarantee Circle may order precautionary measures within the limits of Code 4 where there is a procedural defect or a risk to rights and guarantees;

   f) every version is subject to verification before adoption.
5. No essential function governed by Articles 1–32 may depend exclusively on the AI. In the event of unavailability, the manual or degraded procedures prepared by the Storehouse Council and verified by the Assembly apply.
6. This Article is coordinated with Code 7. In the event of conflict on aspects of network, IT security or

data processing, the competences and guarantees established by Code 7 apply.

Art. 39 — Resilience, redundancy and decentralisation

1. Every critical infrastructure has a continuity and redundancy plan. Where technically possible, the plan provides for at least two independent sources or routes for energy, water and the Network.
2. Each Circle 0 pursues a minimum autonomy capacity of seventy-two hours for vital goods and energy, on the basis of local conditions and the applicable STVs.
3. The parameter referred to in paragraph 2 is an initial one and shall be distinguished, in the subsequent technical annexes, from the parameters of minimum autonomy, resilience, strategic reserve and restoration capacity.
4. Critical dependencies on external parties or infrastructures are recorded in the Dependency Register provided for by Code 15. For each critical dependency a reduction or substitution plan shall be prepared in accordance with the same Code.
5. Data relating to specific vulnerabilities of infrastructures shall not be published in such a way as to create security risks; they are accessible to the competent parties in accordance with a traced procedure.

Art. 40 — Open standards and transparency

1. Common infrastructures shall adopt, as far as technically possible, open and interoperable standards.
2. Infrastructure plans, aggregate consumption, maintenance, incidents and dependencies shall be published, in compliance with data protection and the security of infrastructures.
3. Information that may expose critical infrastructures to risks shall be made accessible only to authorised parties, with recorded access.
4. Purchases above the thresholds established by Code 3 shall be accompanied by a comparative report that considers at least repairability, consumption, durability, interoperability and availability of spare parts.
5. The report shall be published in accordance with the applicable transparency level.

Art. 41 — Systemic link

1. The infrastructures, energy and the Network governed by this Chapter support the performance of the CBO, the management of the Storehouses and the logistics governed by the preceding Chapters.
2. The malfunction of an infrastructure that compromises or risks compromising the provision of the Basket constitutes a ground for the activation of the priorities provided for by Article 32.
3. Where necessary, the Storehouse Council applies the technical necessity clause of Article 32, paragraph 3, documenting the reason, the duration and the effects of the measure.
4. The activation of the priorities does not transfer to the Storehouse Council the competences assigned to the Energy and Water, Network, Health and Safety Councils or to the other bodies by their respective Codes.

CHAPTER V — RECOGNITION CONTRIBUTION

Art. 42 — Nature and limits of the CdR

1. The Recognition Contribution, hereinafter “CdR”, is the personal instrument by which the Community recognises the contribution rendered beyond the CBO, pursuant to Articles 3.5 and 8 of the Constitution. It is not money, a wage or consideration and does not measure the dignity or the rights of the person.
2. The CdR cannot be transferred, assigned, lent or inherited. It does not bear interest and is not convertible

into external means of payment or into UCR.

3. The CdR shall not condition:

    a) access to the Sufficiency Basket and to the rights of Article 1.2 of the Constitution;

    b) the right to vote and to deliberate;

    c) access to health care, to learning and to the Guarantee;

    d) sortition for offices and for the Councils;

    e) the priorities of Article 32.

4. Possession of a competence, a qualification or an office does not give entitlement to CdR. Article 8 of Code 5 applies.

Art. 43 — Award

1. Entitlement to CdR arises from activities additional to the CBO that produce goods for the Common Storehouses or services for the Community, where the work, good or service is validated pursuant to Article 9 of the Constitution and Code 2.

1-bis. The services for the Community referred to in paragraph 1 include cultural, artistic and recreational activities offered in the presence of the Community and open to all its members, such as performances, concerts, readings and celebrations. The following rules apply:

a) CdR accrue to those who perform or lead the activity, not to those who attend or take part in it;

b) the hours performed in presence are counted and, for preparation, no more than the same number again;

c) validation takes place pursuant to Article 9.2 of the Constitution; those who use the service are represented by those who attended. If it is positive, the CdR depend solely on the hours. If it is negative, the suspension provided for by Article 9, paragraph 4, of Code 2 does not apply;

d) paragraph 3 does not apply;

e) the public table sets an annual limit per person; on first application, sixty CdR;

f) activities of worship, activities reserved to a part of the members and time already recognised as CBO pursuant to Article 2, paragraph 3, of Code 5 are excluded.

2. One hour of validated activity gives rise to one CdR. The supplements of Article 10 apply for unpleasant, arduous or night tasks. For travel assignments carried out beyond the CBO, the public table establishes a supplement within the same limits. Travel assignments carried out within the CBO, including those of Article 25, paragraph 5, give no entitlement to CdR: the travel time is counted as hours of CBO.

3. For works and services of particular common utility, the Assembly may award a utility recognition, reasoned and published, within the limit established by the public table and in any event not exceeding the number of hours actually spent. The assessment considers the principles of Care, Autonomy, Conviviality and Meaning referred to in Article 9.1 of the Constitution.

4. The ordinary CBO and the civic functions of List D do not give entitlement to CdR.

5. The award is proposed by the Storehouse Council or by the competent Council, with the advisory support of the Management AI, and is validated with the participation of those who benefit from the good or service, in accordance with Article 9.2 of the Constitution. An award made exclusively by an AI is prohibited.

Art. 44 — Register, cap and decay

1. Each person has a personal and confidential register of his or her own CdR. Only aggregate data are published.

2. The personal balance shall not exceed the cap established by the General Assembly pursuant to Article

14 of Code 3. On first application the cap is two hundred and forty CdR. The balance is the sum of the current values of the unused CdR, verified at the moment of the award. CdR are awarded up to the cap; beyond it no further CdR are awarded, including the supplements of Article 10 and of Article 43, paragraph 2.

3. Unused CdR retain their value for twelve months from accrual. From the completion of the twelfth month the value is reduced in proportion to time, by one twelfth of the initial value per month, until it is extinguished at the completion of the twenty-fourth month. Accrual coincides with the day on which the activity was performed. For the purposes of use and of the cap, each CdR counts for the value it has at that moment.

4. The parameters of paragraphs 2 and 3 are calibrated every year by the General Assembly of Circle 2, within any limits set by the General Assembly of Circle 3. The calibration shall not eliminate the cap or the decay.

5. On the death of the person or on the cessation of member status, the CdR are extinguished.

6. During the suspension provided for by Article 7.3 of the Constitution, ordered pursuant to Article 29, paragraphs 2 and 4-bis, of Code 4, CdR may be neither accrued nor used.

Art. 45 — Use

1. CdR may be used exclusively for:

   a) access to the non-necessary goods and services available in limited quantity, pursuant to Article 18, paragraph 1, letter b);

   b) the prolonged exclusive use of a common space, pursuant to Article 36;

   c) ordinary hospitality in the Bridge Houses, in accordance with Code 11.

2. Use is commensurate with the reproduction cost of the good or service, expressed in UCR and published in the table of Article 46. For the sole purposes of use, one CdR at full value corresponds to one UCR.

3. CdR that have been used are cancelled and are not awarded to anyone. The CdR with the earliest accrual are used first.

4. Non-necessary goods and services remain accessible even without CdR, by booking or transparent waiting list. The use of CdR confers precedence within a share of the availability established by the Assembly, not exceeding one half.

5. It is prohibited to exchange CdR between persons, to use them as consideration for services between persons and to establish markets, auctions or variable prices in CdR. Violations are dealt with in accordance with Code 4.

Art. 46 — Public table, transparency and appeal

1. The public table indicates the supplements, the limits of the utility recognition, the cap, the decay and the cost in UCR of non-necessary goods and services. It is approved by the Assembly of Circle 1 in compliance with the parameters calibrated by the General Assembly.

2. Every quarter the CdR awarded, used and extinguished and their distribution by bands shall be published in aggregate form, without identifying persons.

3. If more than one fifth of the existing CdR is found to be held by fewer than one twentieth of the persons, the Assembly shall review the table and the cap.

4. An appeal against the award or the refusal of CdR may be lodged with the Guarantee Circle within fourteen days of the communication, in accordance with Code 4.

CHAPTER VI — GOODS OF USE, SUCCESSION AND RELOCATION

Art. 47 — Personal-use goods and ownership of use

1. The personal-use goods referred to in Article 10.3 of the Constitution are not counted in the Storehouses and shall not be collectivised. The limits of Article 10.4 of the Constitution apply.

2. Ownership of use of a dwelling, a craft workshop, a field or a collective tool, pursuant to Article 10.2 of the Constitution, is registered with the Storehouse Council and, as regards territorial aspects, in the Land Register provided for by Code 10. It is founded on actual and continuous use.

3. Ownership of use ceases by renunciation, by non-use continuing beyond twelve months without justification or by violation of the limits of Article 10.4 of the Constitution, established in accordance with Code 4. The main dwelling shall not be revoked without the assignment of another adequate dwelling, except in the cases of paragraph 3-bis.

3-bis. Ownership of use of the dwelling also ceases upon transfer to another Community pursuant to Article 49, upon the declaration of Article 4.8 of the Constitution and upon the termination of status provided for by Article 7.3-bis of the Constitution. The housing continuity of those living in the same Circle 0 is safeguarded, pursuant to Article 3.7 of the Constitution. In the case of transfer the dwelling is vacated at the end of the Bridge House allocation of Article 49, paragraph 3; in the case of the declaration of Article 4.8, at the end of the hospitality of Article 4.9, letter b), of the Constitution, unless the person requests the Autonomous Coexistence Pact: in that case they remain in the dwelling until the handover of the portion, pursuant to Article 4-bis, paragraph 7, of Code 10, and the dwelling may be entrusted to them with the Pact pursuant to Article 4.9-bis of the Constitution. For those who remain without a Pact, Article 4.9-ter of the Constitution applies, except, for a minor, Article 26.5 of the Constitution. In the case of Article 7.3-bis of the Constitution, Article 29, paragraph 6-bis, of Code 4 applies.

4. The prohibition of private accumulation beyond seven days of the family requirement, provided for by Article 10.5 of the Constitution, concerns goods drawn from the Storehouses. This is without prejudice to reasoned needs, in particular those relating to health, season or isolation.

Art. 47-bis — Adequate dwelling

1. The dwelling provided for by Article 1.2, letter a), of the Constitution is adequate when it ensures at least:

   a) a private space that can be closed for every person from fourteen years of age; two persons share it only if both request it;

   b) protection from cold, heat and damp sufficient not to harm health;

   c) access to the Water Basket and to the Energy Basket provided for by Code 8;

   d) spaces for cooking and for hygiene, own or shared within Circle 0;

   e) the accessibility the person needs, in accordance with his or her individual care plan provided for by Code 12.

2. The quantitative standards are determined by the Assembly on a joint proposal from the Storehouse Council and the Energy and Water Council, with the opinion of the Health Council and of the Habitat and Territory Council. On first application every dwelling comprises at least a living room and a separate bedroom; a studio flat does not meet the standard. Each Circle 0 has at least one bathroom for every four persons or fraction thereof; beyond the first, bathrooms may be facilities with a WC and washbasin. Bathrooms may be shared among the dwellings of the same Circle 0. When a Circle 0 lives in more than one dwelling, the floor area is calculated on the total number of its persons. The habitable floor area is not less than thirty square metres for one person, forty-five for two and sixty for three; it increases by fifteen square metres for each additional person up to the fifth and by ten for each person beyond the fifth. Each private space provided for by letter a) of paragraph 1 is not less than nine square metres. Subsequent determinations may not fall below the first-application values without the favourable opinion of the Health Council.

3. The standards of paragraph 2 do not apply to the equipped stopping areas provided for by Article 6-ter, paragraph 6, of Code 11.

4. A dwelling that does not comply with paragraph 1 or with the standards of paragraph 2 may not for that reason be revoked or refused. The Community includes its upgrading in housing planning, with a time limit not exceeding thirty-six months, which may be extended once only by a reasoned resolution of the Assembly. An appeal to the Guarantee Circle lies against failure to upgrade. As regards temperature, Articles 4 and 10 of Code 8 remain in force.

5. For the purposes of Article 47, paragraph 3, of this Code and of Articles 29 and 34 of Code 4, a dwelling that complies with paragraph 1 is adequate. If none is available, the best available dwelling is assigned, and its upgrading takes precedence in planning.

6. Upgrading takes place in compliance with Articles 2 and 5 of Code 10: the reuse and recovery of buildings precede any new construction. Until Codes 8 and 12 are activated, letters a), b) and d) of paragraph 1 and, of paragraph 2, the floor area, the minimum composition and the number of bathrooms apply.

Art. 47-ter — Housing planning and allocation

1. The housing planning provided for by Article 3.7 of the Constitution is proposed by the Storehouse Council, through the Textile and Housing Storehouse, with the mandatory opinion of the Habitat and Territory Council and of the Care Council, and is approved by the Assembly of Circle 1. It is updated at least once a year and includes the inventory of the dwellings in use and of their adequacy within the meaning of Article 47-bis, the vacant dwellings, the waiting list and the programme of adaptations and recoveries.

2. The Storehouse Council allocates dwellings by reasoned decision, according to real needs and in the following order:

   a) persons and Circles 0 without a dwelling, those living in a dwelling that endangers health and persons who have to leave their dwelling because of a protection measure of Codes 4 or 12;

   b) need assessed according to the composition of the Circle 0, the accessibility required and health conditions, the latter certified by the Health Council without stating their content;

   c) proximity to the Circle 0, to places of care and to the person’s CBO;

   d) where needs are equal, the order of registration on the waiting list.

   Allocation may not depend on hours of CBO, on CdR or on the offices held.

3. The waiting list is published in anonymous form, with an identifier, the date of registration, the criterion applied and the position, in accordance with Code 7, Article 2.2. Health information is not made public.

4. Where dwellings are insufficient:

   a) no one is left without shelter: pending allocation, the best available dwelling within the meaning of Article 47-bis, paragraph 5, or a place in a Bridge House is assigned, without any time limit and also beyond the allocation of Article 49, paragraph 3, and failing that an equipped stopping area pursuant to Article 6-ter, paragraph 6, of Code 11;

   b) planning gives precedence to the reuse and recovery of buildings, pursuant to Articles 2 and 5 of Code 10;

   c) exchanges of dwellings between Circles 0 take place only with the consent of those concerned, without prejudice to Article 47, paragraphs 3 and 3-bis;

   d) if the shortage lasts more than six months, Circle 1 informs Circle 2, which assists in the search for other placements.

5. An appeal to the Guarantee Circle pursuant to Article 17 of Code 3 is permitted against the allocation, the refusal and the position on the waiting list. The appeal does not take from anyone the dwelling they already occupy.

6. For the purposes of Article 32, paragraph 1, letter b), the allocation of a dwelling to a person who has

none and the repair that makes a dwelling habitable are goods of the Basket. The adaptations of Article 47-bis, paragraph 4, that do not concern health are deferrable within the meaning of Article 32, paragraph 1-bis.

7. The destination Community provided for by Article 49, paragraph 4, allocates the dwelling in accordance with this Article.

Art. 48 — Succession to goods of use

1. On the death of the person, personal effects, clothing and individual work tools are destined for the Circle 0 to which the person belonged or for the persons designated during his or her lifetime, pursuant to Article 3.6 of the Constitution. The designation shall be made in writing or recorded in the personal AI Node, in the presence of two witnesses.
2. The designation shall not concern Commons, the dwelling or highly specialised tools. Goods that exceed the personal use of the person receiving them, or that would reconstitute an accumulation prohibited by Article 10.4 of the Constitution, are conferred on the Common Storehouse.
3. The dwelling cannot be inherited. It returns to the housing planning of Circle 1, safeguarding the continuity of residence of the cohabitants belonging to the same Circle 0, pursuant to Article 3.7 of the Constitution.
4. Highly specialised tools and goods not reused in Circle 0 are conferred on the Common Storehouse of Circle 1, pursuant to Article 3.8 of the Constitution.
5. Digital memories and works are kept in the Open Archive pursuant to Article 3.9 of the Constitution. The personal AI Node is reset pursuant to Article 21.5 of the Constitution.

Art. 49 — Relocation, bridge CBO and Bridge House allocation

1. A person who leaves a Base Community to move to another retains the personal-use goods lawfully held, pursuant to Article 5.2 of the Constitution.
2. For thirty days the person is entitled to the bridge CBO: the CBO obligation in the Community of origin is suspended and the contribution is performed in the Community of destination or of transit, to an extent compatible with the relocation.
3. For the same period the person is entitled to the Bridge House allocation: accommodation in a Bridge House, access to the Basket and the means necessary to move personal effects, in accordance with Code 11. The provision does not require CdR.
4. The Community of destination shall assign a dwelling for use according to availability. Until the assignment, hospitality continues pursuant to Article 12.3 of the Constitution. If availability is lacking, Circle 2 shall assist in the search for another placement.
5. Relocation shall not give rise to annotations or prejudicial consequences for the person.
6. The support for starting an autonomous life of Article 26.4 of the Constitution comprises at least the allocation of paragraphs 2 and 3. For a person who chooses to leave the Confederation it comprises the Personal-Use Goods, the means for the move and a sum from the common Fund set every year by the Assembly, pursuant to Article 17 of Code 15. It is proposed by the Care Council; an appeal against the decision lies to the Guarantee Circle.